

STATE OF NEW YORK

6438--C

2025-2026 Regular Sessions

IN SENATE

March 13, 2025

Introduced by Sens. COMRIE, FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to promoting consumer choice by requiring manufacturers of digital electronic equipment to provide retail sellers with a one through ten repair score that will be displayed to consumers at point of sale

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "The Electron-
2 ics Repair Scores Act".

3 § 2. Subdivision 1 of section 399-nn of the general business law is
4 amended by adding two new paragraphs (s) and (t) to read as follows:

5 (s) "Repair score" or "score" means a numerical, alphanumerical, or
6 alphabetical score calculated by the manufacturer based on the repair
7 scoring criteria developed by the department of state.

8 (t) "Detailed score" means the information regarding the calculation
9 and meaning of the repair score as defined by the scoring criteria
10 developed by the department of state.

11 § 3. Subdivision 2 of section 399-nn of the general business law, as
12 amended by chapter 48 of the laws of 2023, is amended to read as
13 follows:

14 2. Requirements. (a) An original equipment manufacturer shall make
15 available to any independent repair provider and owner of digital elec-
16 tronic equipment manufactured by or on behalf of or sold by such
17 original equipment manufacturer, on fair and reasonable terms, any

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 documentation, parts, and tools required for the diagnosis, maintenance,
2 or repair of such digital electronic equipment and parts that are manu-
3 factured for the first time, and first sold or used in New York on or
4 after July first, two thousand twenty-three. Such documentation, parts,
5 and tools shall be made available either directly by an original equip-
6 ment manufacturer or via an authorized repair provider. An original
7 equipment manufacturer who, in the regular course of business, offers to
8 an owner the services of diagnosis, maintenance or repair of its own
9 digital electronic equipment, and who does not have an arrangement
10 described in paragraph (a) of subdivision one of this section with an
11 unaffiliated individual or business, shall be considered an authorized
12 repair provider with respect to such equipment.

13 (b) (i) For digital electronic equipment that is sold or used in this
14 state, an original equipment manufacturer shall make available to any
15 retail sellers and the department of state the repair score and detailed
16 score for such digital electronic equipment, inclusive of any updates to
17 information.

18 (ii) Original equipment manufacturers shall print the repair score and
19 detailed score on packaging of such digital electronic equipment, the
20 score shall include the logo representation of the score as developed by
21 the department of state.

22 (iii) Original equipment manufacturers shall clearly display repair
23 scores for such products on their website product listing pages, as well
24 as make publicly available detailed scores to all potential purchasers
25 on each product listing page.

26 (iv) Scoring criteria will be determined by the department of state,
27 which shall periodically update such criteria, and a logo representation
28 of scores. Scoring criteria shall apply only to digital electronic
29 equipment manufactured for the first time, and first sold or used in New
30 York on or after one year from the effective date of this paragraph, and
31 which are already subject to widely accepted repairability index stand-
32 ards in other jurisdictions, including international standards. Scoring
33 criteria may include, but is not limited to: the free and public avail-
34 ability of technical documents regarding repair and maintenance of the
35 product; ease of disassembly of the product; availability of tools for
36 repair and maintenance of the product; availability of spare parts for
37 the product; length of software support by the manufacturer of the
38 product; the repair options available for the equipment; and other
39 criteria considered by widely accepted repairability index standards in
40 other jurisdictions. The department of state shall make every effort to
41 incorporate the standards from existing repairability index standards
42 implemented in the U.S. and internationally, to avoid duplicative or
43 inconsistent regulatory standards, unless there are compelling reasons
44 to adopt new or differing standards.

45 § 4. This act shall take effect one year after it shall have become a
46 law.